

M/s J.P. Textiles v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 April 2019 · Writ-C No. 10928 of 2019 · **Writ disposed; consumer relegated to CGRF/Ombudsman under clause 7.10.**

HEADNOTE

A power-loom consumer's dispute over subsidy under a Government Order and the correctness of a demand bill is for the Consumer Grievance Redressal Forum and, by appeal, the Ombudsman under clause 7.10 of the U.P. Electricity Supply Code, 2005. The High Court declined writ interference and disposed of the petition with liberty to take that route.

FACTUAL SUMMARY

M/s J.P. Textiles, a power-loom consumer with a 3 H.P. connection, claimed subsidy under a Government Order dated 14 June 2006. The Executive Engineer, by order dated 15 March 2019, held that the subsidy applied only to power-loom connections up to 1 H.P. and that the petitioner's 3 H.P. connection fell outside its purview. A bill dated 21 February 2019 was raised without subsidy. The consumer challenged that order and demand in writ proceedings before the Allahabad High Court.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF/Ombudsman as alternative remedy for subsidy and billing disputes

HOLDING

Where a consumer disputes admissibility of subsidy under a Government Order and the correctness of a demand bill, the remedy is to approach the Consumer Grievance Redressal Forum and thereafter the Ombudsman by appeal under clause 7.10 of the Electricity Supply Code, 2005; the High Court will not exercise discretionary writ jurisdiction in such a case.

¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER SUBSIDY UNDER THE GOVERNMENT ORDER DATED 14.6.2006 IS ADMISSIBLE TO A 3 H.P. POWER-LOOM CONNECTION

Left to CGRF and Ombudsman. ¶ 3-4

NOT DECIDED — CORRECTNESS OF THE DEMAND BILL DATED 21.2.2019

Left to CGRF and Ombudsman. ¶ 3-4